

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #06	CCRB Case #: 201900888	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 10/14/2018 2:00 PM	Location of Incident: Outside of § 87(2)(b); En route to the 77th Pct. Stationhouse; 77th Pct. Stationhouse		18 Mo. SOL 11/29/2020	Precinct: 77	
Date/Time CV Reported Tue, 01/29/2019 12:52 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 01/29/2019 12:52 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Douglas Carr	05126	907695	077 DET
2. DT2 Brian Duffy	02080	920237	077 DET
3. DT3 Adam Mclawhorn	06704	933004	077 DET
4. An officer			077 DET

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: Outside of § 87(2)(b) in Brooklyn, an officer refused to provide his name to § 87(2)(b)	A . Officer(s) Unidentified
B . DT2 Douglas Carr	Abuse: En route to the 77th Precinct Stationhouse, Detective Douglas Carr refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . DT2 Brian Duffy	Abuse: En route to the 77th Precinct Stationhouse, Detective Brian Duffy refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . DT3 Adam Mclawhorn	Abuse: En route to the 77th Precinct Stationhouse, Detective Adam Mclawhorn refused to provide his name to § 87(2)(b)	D . Unsubstantiated
E . DT2 Douglas Carr	Off. Language: At the 77th Precinct Stationhouse, Douglas Carr made remarks to § 87(2)(b) based upon ethnicity.	E . Unsubstantiated
F . DT2 Douglas Carr	Abuse: At the 77th Precinct Stationhouse, Detective Douglas Carr refused to provide his name to § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 29, 2019, § 87(2)(b) filed this complaint via the CCRB's online website.

On October 14, 2018, at approximately 2:00 p.m., Detective Douglas Carr, Detective Brian Duffy, and Detective Adam McLawhorn, of the 77th Precinct Detective Squad, arrested § 87(2)(b) for § 87(2)(b) outside of his residence, located at § 87(2)(b) in Brooklyn. Prior to being placed in the police vehicle, § 87(2)(b) asked the officer who handcuffed him for his name, which the officer allegedly failed to provide (Allegation A: Abuse of Authority, officer unidentified). En route to the 77th Precinct Stationhouse, § 87(2)(b) asked Det. Carr, Det. Duffy, and Det. McLawhorn for their names, which they allegedly failed to provide (Allegations B-D: Abuse of Authority, unsubstantiated). At the 77th Precinct Stationhouse, Det. Carr allegedly said to § 87(2)(b) "I think you should go back to St. Lucia" (Allegation E: Offensive Language, unsubstantiated). While § 87(2)(b) was fingerprinted and photographed at the 77th Precinct Stationhouse, he asked Det. Carr for his name, which Det. Carr allegedly refused to provide (Allegation F: Abuse of Authority, unsubstantiated). § 87(4-b), § 87(2)(g)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There was no video footage obtained of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, an officer refused to provide his name to § 87(2)(b)

It is undisputed that as § 87(2)(b) approached his residence, Det. Carr, Det. Duffy, and Det. McLawhorn exited their vehicle and placed § 87(2)(b) under arrest.

§ 87(2)(b) testified (Board Review 01) that he asked the officer who handcuffed him for his name and the officer did not respond. § 87(2)(b) distinguished between Det. Carr, who is a black male and was the officer with whom he primarily interacted, and the other two officers who were present while he was arrested. § 87(2)(b) described the officer who handcuffed him as a Hispanic male with a light complexion, in his early 40s, standing 5'8" to 5'10" tall, with a medium build, and possibly having red or brown hair. In his phone statement (Board Review 02), § 87(2)(b) described the third officer as a male with a light complexion, in his early to mid-40s, standing 5'8" to 5'10" tall, with a medium build. § 87(2)(b) was unable to provide additional pedigree information distinguishing these two officers.

Det. Carr testified (Board Review 03) that upon approaching § 87(2)(b) he introduced himself as Detective Carr. He did not recall who handcuffed § 87(2)(b). Det. Carr did not recall if § 87(2)(b) asked Det. Duffy or Det. McLawhorn for their names and did not recall whether Det. Duffy or Det. McLawhorn refused to provide their names to § 87(2)(b).

Det. Duffy testified (Board Review 04) that Det. Carr introduced himself to § 87(2)(b) prior to handcuffing him. § 87(2)(b) did not ask Det. Duffy for his name and to his knowledge, he

did not refuse to provide his name to § 87(2)(b) Det. Duffy was not aware of § 87(2)(b) asking Det. McLawhorn for his name nor whether Det. McLawhorn refused to provide his name.

Det. McLawhorn testified (Board Review 05) that an officer identified himself as a police officer, but he did not recall whom. Either Det. Duffy or Det. Carr handcuffed § 87(2)(b) Det. McLawhorn denied being asked for his name and Det. McLawhorn did not refuse to provide his name. Det. McLawhorn did not recall § 87(2)(b) asking Det. Duffy for his name and Det. Duffy did not refuse to provide his name to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B) Abuse of Authority: En route to the 77th Precinct Stationhouse, Detective Douglas Carr refused to provide his name to § 87(2)(b)

Allegation (C) Abuse of Authority: En route to the 77th Precinct Stationhouse, Detective Brian Duffy refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: En route to the 77th Precinct Stationhouse, Detective Adam McLawhorn refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that while being transported to the 77th Precinct Stationhouse, he asked Det. Carr, Det. Duffy, and Det. McLawhorn for their names several times, all of whom did not respond to his request.

Det. Carr testified that he provided his name to § 87(2)(b) two or three times but was not sure where that occurred and did not refuse to provide his name to § 87(2)(b) in the police vehicle. Det. Carr did not recall whether Det. Duffy or Det. McLawhorn refused to provide their names to § 87(2)(b)

Det. Duffy and Det. McLawhorn testified that they did not fail to provide their names to § 87(2)(b) Det. Duffy and Det. McLawhorn testified that neither of the other officers refused to provide their names to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations B-D** be closed as **unsubstantiated**.

Allegation (E) Offensive Language: At the 77th Precinct Stationhouse, Douglas Carr made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(b) testified that in the 77th Precinct Stationhouse, Det. Carr asked him about domestic issues with his wife, which Det. Carr explained was the reason for his arrest. During this conversation, Det. Carr stated, "I think you should go back to St. Lucia," which § 87(2)(b) interpreted as insulting and degrading. Nobody else was present to witness these remarks.

Det. Carr testified that he told § 87(2)(b) why he was arrested but did not make any statements regarding § 87(2)(b)'s Caribbean nationality. Det. Carr denied saying, "I think you should go back to St. Lucia." He further stated, § 87(2)(b) is a black male just like myself and I would never tell him that."

Det. Duffy and Det. McLawhorn testified that they were not present for any interviews or conversations between Det. Carr and § 87(2)(b) at the 77th Precinct Stationhouse. Neither Det. Duffy nor Det. McLawhorn witnessed Det. Carr say to § 87(2)(b) "I think you should go back to St. Lucia."

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation (F) Abuse of Authority: At the 77th Precinct Stationhouse, Detective Douglas Carr refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that while being fingerprinted and photographed by Det. Carr, he asked Det. Carr for his name, but Det. Carr laughed and did not respond.

Det. Carr testified that he did not recall whether § 87(2)(b) asked him for identifying information while he fingerprinted and photographed § 87(2)(b). Det. Carr stated that he had provided his name several times to § 87(2)(b) throughout the incident and denied refusing to provide his name at this point.

Det. Duffy and Det. McLawhorn both testified that they were not present when Det. Carr. fingerprinted and photographed § 87(2)(b). Neither Det. Duffy nor Det. McLawhorn witnessed Det. Carr refuse to provide his name to § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 08).
- Det. Carr has been a member of service for twenty-four years and has been a subject in five CCRB complaints and 16 allegations, of which one was substantiated.
 - 200500586 involved a substantiated allegation of a frisk against Det. Carr. The Board recommended Instructions and the NYPD concurred.
 - § 87(2)(g)
- Det. Duffy has been a member of service for twenty-one years and has been a subject in one CCRB complaint and one allegation, neither of which were substantiated. § 87(2)(g)
- Det. McLawhorn has been a member of service for fifteen years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim Inquiry was submitted to the NYC Comptroller's Office on April 15, 2019 and will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date